TERMS OF SERVICE

Last Updated: April 7, 2026

These Terms of Service ("Terms") constitute a legally binding agreement between you ("User," "Guest," or "Client") and **Agritourism Adventures** ("Business," "we," "us," or "our"), governing your access to and use of the Agritourism Adventures website (https://agritourismadventures.com/) and the purchase of any travel services, tours, or experiences provided by the Business.

By accessing our website or booking a service, you agree to be bound by these Terms, all applicable laws of the Republic of Kenya, and relevant international regulations.

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1. DEFINITIONS AND SCOPE OF SERVICES

1.1 **Services:** Refers to the travel and educational experiences provided by the Business, including but not limited to Farm Tours, Dairy + Tea Safaris, Agricultural Wildlife Safaris, Cultural Tours, Community Homestays, and Educational Tours.
1.2 **Booking:** The process of reserving a Service through our website, email, or authorized representatives.
1.3 **Content:** All text, images, videos, and educational materials provided on our platform.

2. ELIGIBILITY AND BOOKING

2.1 To book a tour, you must be at least 18 years of age or accompanied by a legal guardian.
2.2 A booking is considered confirmed only upon receipt of the required deposit or full payment as specified at the time of booking and the subsequent issuance of a confirmation invoice by the Business.
2.3 You are responsible for providing accurate personal information, including health requirements and emergency contact details, necessary for the safe execution of the tour.

3. PRICING, DEPOSITS, AND PAYMENT

3.1 **Prices and Currency:** All prices are quoted in the currency specified on your quotation/invoice (typically **Kenya Shillings (KES)** or **United States Dollars (USD)**). If prices are shown in both currencies, the **billing currency** will be the currency stated on the invoice/checkout page.
3.2 **Taxes and Mandatory Fees:** Prices may be subject to change due to seasonal availability and/or government-imposed levies and mandatory charges (including, where applicable, VAT, conservancy fees, park entry fees, or similar statutory charges). Where a change affects your booking, we will communicate it as soon as reasonably possible.
3.3 **Deposit Requirement (When Applicable):** Unless stated otherwise in writing, bookings require a **non-refundable deposit of 30%** of the total booking value to secure reservations. Some Services (including third-party safari components, park permits, peak-season travel, or small-group/limited-capacity experiences) may require a **higher deposit or full payment** upfront; this will be communicated before payment.
3.4 **Balance Due Date:** Unless otherwise stated on the invoice, the remaining balance is due **no later**

than 14 days before the start date of the Service. For bookings made within 14 days of the start date, **full payment is due immediately**.

3.5 **Payment Methods:** Payments must be made via the authorized payment gateways or bank accounts provided by the Business, which may include card payments, bank transfer, and approved mobile money options (where available). You are responsible for ensuring payments are correctly referenced with your booking details.

3.6 **Bank/Processor Charges and Exchange Rates:** Any bank transfer fees, intermediary bank charges, card processing fees, or foreign exchange costs charged by your bank/payment provider are your responsibility unless we expressly agree otherwise in writing. Where we must convert currencies, the exchange rate used will be the rate applied by our payment processor/bank on the transaction date (or another rate disclosed on the invoice).

3.7 **Late or Non-Payment:** Failure to pay the deposit or balance by the specified due date may result in cancellation of your booking, release of reserved space, and forfeiture of the deposit (subject to applicable consumer protection requirements).

4. CANCELLATION AND REFUND POLICY

4.1 **How to Cancel:** Cancellations must be submitted in writing to the Business (email is acceptable) by the person who made the booking. The effective cancellation date is the date we receive your written cancellation.

4.2 **Standard Cancellation Schedule (Penalty/Refund Eligibility):** Unless otherwise stated on your invoice for a specific Service, cancellation charges apply as follows (calculated on the **total booking price**, excluding any non-refundable third-party fees described in clause 4.6):

- **60+ days before start date:** Refund of amounts paid **less (i) a 5% administrative fee** and **(ii) any non-refundable third-party charges** (if already incurred).
- **30–59 days before start date:** Refund of **50%** of the total booking price (less any non-refundable third-party charges, if already incurred).
- **15–29 days before start date:** Refund of **25%** of the total booking price (less any non-refundable third-party charges, if already incurred).

- **14 days or less before start date / no-show / early departure: No refund**.

4.3 **Deposits:** Deposits are generally **non-refundable** unless we cancel the Service (see clause 4.5) or applicable law requires otherwise. If the cancellation schedule in clause 4.2 provides a refund, that refund is applied to amounts paid and may still exclude the deposit portion where stated on your invoice.

4.4 **Changes by You (Rescheduling/Name Changes):** If you request a date change, itinerary change, or name substitution, we will try to accommodate it subject to availability and supplier terms. Additional costs may apply, and some components may be non-changeable or treated as a cancellation by suppliers.

4.5 **Cancellation by the Partnership:** Agritourism Adventures reserves the right to cancel a Service due to Force Majeure, safety/security concerns, supplier failure, legal/regulatory restrictions, or insufficient participants. Where we cancel, you may choose **(i) a full refund of amounts paid to Agritourism Adventures for the cancelled Service**, or **(ii) an alternative date/credit** of equivalent value, unless the cancellation is due to Force Majeure and costs have already been irreversibly incurred (see clause 4.7).

4.6 **Non-Refundable Third-Party Costs:** Certain third-party charges may be non-refundable once booked (including but not limited to park fees/permits, conservancy fees, accommodation deposits, transport reservations, or payment processor fees). Where these apply, we will disclose them as part of your booking/itinerary confirmation and they will be deducted from any refund.

4.7 **Force Majeure and Refunds:** In a Force Majeure event, we will act fairly and in good faith to minimize losses and offer suitable alternatives where possible. Refunds (if any) may be limited to amounts recoverable from suppliers and/or amounts not already committed to non-refundable costs, subject to applicable consumer protection requirements.

4.8 **Refund Processing Time:** Approved refunds are typically processed within **14–30 business days**, depending on payment method and banking timelines.

5. USER CONDUCT AND CULTURAL ETIQUETTE

5.1 Our services focus on community empowerment and the preservation of ancestral agricultural wisdom. Guests are expected to behave respectfully toward local farming communities, livestock, and the environment.

5.2 Guests must follow all instructions provided by guides and host families, particularly regarding safety and cultural norms.

5.3 Agritourism Adventures reserves the right to terminate the service of any guest whose conduct is deemed disruptive, illegal, or harmful to the community without a refund.

6. HEALTH, SAFETY, AND INSURANCE

6.1 **Inherent Risks:** Participation in agritourism, homestays, and safari-style experiences involves physical activity and exposure to farm and outdoor environments (including animals, uneven terrain, agricultural machinery, insects, weather changes, and remote locations). By booking, you acknowledge these inherent risks.

6.2 **Mandatory Insurance (International Guests):** It is a mandatory requirement for all international

guests to maintain comprehensive travel insurance covering, at minimum, emergency medical treatment, personal accident, medical evacuation/repatriation, and trip cancellation/curtailment.
6.3 **Recommended Insurance (All Guests):** We strongly recommend all guests (including Kenyan residents) obtain appropriate cover for medical expenses, personal effects, and activity-related risks.
6.4 **Medical Fitness and Disclosures:** Guests must disclose relevant medical conditions, allergies, dietary requirements, disabilities/access needs, and any other material information at the time of booking (or as soon as they arise). Failure to disclose may increase risk and may limit our ability to accommodate you.
6.5 **Safety Rules and Instructions:** You must follow all safety instructions provided by Business staff, guides, host families, farmers, rangers, and partner operators, including instructions relating to animal handling, biosecurity, hygiene, machinery exclusion zones, and vehicle/boat safety (where applicable).
6.6 **Farm Biosecurity and Hygiene:** For farm visits, you agree to comply with reasonable biosecurity requirements (which may include handwashing, footwear cleaning, limited contact with animals, avoiding certain areas, and not bringing outside animal products onto farms) to protect animal and community health.
6.7 **Wildlife and Safari Safety:** Where Services include wildlife viewing, you must comply with park rules and guide instructions. Do not approach, feed, or provoke wildlife; remain in vehicles when instructed; and maintain safe distances.
6.8 **Minors:** Minors must be supervised by a parent/legal guardian at all times unless a written arrangement is agreed in advance. Some activities may have minimum age/fitness requirements.
6.9 **Refusal of Participation for Safety:** We may refuse participation, modify activities, or remove a guest from an activity (without refund for that portion) where reasonably necessary for safety, legal compliance, or to protect communities, livestock, wildlife, or the environment.

7. INTELLECTUAL PROPERTY RIGHTS

7.1 All content on the Agritourism Adventures website, including the "Agritourism Adventures" name, logos, and educational materials, is the intellectual property of the Business and protected under the Copyright Act (Cap. 130) of Kenya.
7.2 Users may not reproduce, distribute, or use Business content for commercial purposes without prior written consent.

8. LIMITATION OF LIABILITY AND INDEMNIFICATION

8.1 **Consumer Rights and Legal Compliance:** Nothing in these Terms limits or excludes any rights and remedies you may have under the **Consumer Protection Act, 2012 (Kenya)** or other applicable law, including liability that cannot lawfully be limited (for example, liability arising from fraud or from death/personal injury caused by our negligence to the extent such limitation is prohibited by law).
8.2 **Assumption of Risk (Inherent Risks):** You understand that our Services may involve inherent risks (see clause 6.1). You agree to take reasonable care for your own safety and property and to comply with safety instructions at all times.
8.3 **Limitation of Liability (Where Permitted):** To the maximum extent permitted by the **Law of Contract Act (Cap. 23)** and the **Consumer Protection Act, 2012**, and subject to clause 8.1:
(a) we are not liable for indirect, incidental, special, or consequential losses (including loss of enjoy-

ment, profits, business, or opportunity); and
(b) our total aggregate liability for claims arising out of or connected with a booking/Service will not exceed the amount paid by you to Agritourism Adventures for the specific Service giving rise to the claim.
8.4 **No Exclusion for Negligence Where Unlawful:** We do not seek to exclude or restrict liability for our own negligence where Kenyan law does not allow such exclusion or restriction. Any limitation in these Terms shall be interpreted accordingly.
8.5 **Third-Party Providers / Independent Contractors:** The Business may act as an intermediary or arranger for certain elements (including third-party transport, accommodation, park services, or specialized safari operators). To the extent permitted by law, we are not liable for acts, omissions, or failures of independent third-party providers. However, where Agritourism Adventures is legally responsible for a third party's performance, nothing in these Terms limits those non-excludable obligations.
8.6 **Property and Personal Effects:** You are responsible for your personal property during Services. To the extent permitted by law, we are not liable for loss, theft, or damage to personal items unless caused by our negligence.
8.7 **Indemnification:** To the extent permitted by Kenyan law, you agree to indemnify and hold harmless the Business, its directors, employees, guides, and agents against claims, damages, liabilities, and reasonable costs arising from: (a) your breach of these Terms; (b) your unlawful acts or omissions; (c) your wilful misconduct or reckless behaviour; or (d) your violation of instructions, safety rules, or community/park regulations—except to the extent caused by Agritourism Adventures' negligence or breach of contract.
8.8 **Duty to Mitigate:** Each party agrees to take reasonable steps to mitigate losses where possible.

9. DATA PROTECTION

9.1 All personal data collected through the website or booking process is governed by our Privacy Policy and is handled in compliance with the Kenya Data Protection Act (2019) and, where applicable, the GDPR.

10. FORCE MAJEURE

10.1 The Business shall not be liable for failure to perform its obligations if such failure results from circumstances beyond its reasonable control, including but not limited to acts of God, war, civil unrest, strikes, pandemics, or government-imposed travel restrictions.

11. DISPUTE RESOLUTION AND GOVERNING LAW

11.1 These Terms shall be governed by and construed in accordance with the Laws of the Republic of Kenya.
11.2 Any dispute arising out of or in connection with these Terms shall first be attempted to be settled through amicable negotiation.
11.3 If negotiations fail, the dispute shall be referred to arbitration in Nairobi, Kenya, in accordance with the Rules of the Chartered Institute of Arbitrators (Kenya Branch).

12. AMENDMENTS

12.1 Agritourism Adventures reserves the right to amend these Terms at any time. Changes will be effective immediately upon posting on the website. Your continued use of the services constitutes acceptance of the revised Terms.

Agritourism Adventures

Empowering Communities, Preserving Heritage, Promoting Sustainability.